

24STCV29484 24STCV29484

County: los-angeles

Division: Civil Law and Motion

Department: 617

Hearing date: 2026-07-09

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Case Number: 24STCV29484 Hearing Date: July 9, 2026 Dept: 617

Dept.

617

Date:

7-9-26

Case

#: 24STCV29484

Trial

Date: 2-1-27

BIFURCATE

MOVING

PARTY: Defendant City of Los Angeles acting by and through the Los Angeles

Department of Water and Power

RESPONDING

PARTY: Plaintiffs, William Stan Spry and Heidi Spry

RELIEF

REQUESTED

Motion

to Bifurcate

SUMMARY

OF ACTION

Plaintiffs

William Stan Spry and Heidi Spry sued Defendant Los Angeles Department of Water and Power after improvements to the road and drainage leading to the Hollywood Reservoir allegedly caused rainwater to be directed, redirected, and to flood toward and into Plaintiffs' property. Plaintiffs assert claims for inverse condemnation, private nuisance, and negligence.

RULING: Granted.

Request for Judicial Notice:

Denied.

The Court does not take judicial notice of the appellate court decisions because they are immaterial to disposition of the motion.

Defendant moves to bifurcate the trial on the issue of causation for the inverse condemnation cause of action. It argues that bifurcation promotes judicial economy because a ruling on causation would narrow the issues for the jury trial. Plaintiffs oppose the motion, contending that Defendant's causation theory is actually one for comparative fault, the issue involves disputed facts that should be heard by the jury, and bifurcation does not support economy here.[1] Defendant's motion is granted.

Code of

Civil Procedure section 598 states in part: "The court may, when the convenience of witnesses, the ends of justice, or the economy and efficiency of handling the litigation would be promoted thereby, on motion of a party, after notice and hearing, make an order, no later than the close of pretrial conference in cases in which such pretrial conference is to be held, or, in other cases, no later than 30 days before the trial date, that the trial of any issue or any part thereof shall precede the trial of any other issue or any part thereof in the case, except for special defenses which may be tried first pursuant to Sections 597 and 597.5." Code of

Civil Procedure, section 1048, subdivision (b), additionally adds: "The court, in furtherance of convenience or to avoid prejudice, or when separate trials will be conducive to expedition and economy, may order a separate trial of any

cause of action, including a cause of action asserted in a cross-complaint, or of any separate issue or of any number of causes of action or issues, preserving the right of trial by jury required by the Constitution or a statute of this state or of the United States.”

Trial is bifurcated. In an inverse condemnation proceeding, a plaintiff does not have a right to a jury trial on the issue of liability. (Marshall v. Dept. of Water & Power (1990) 219 Cal.App.3d 1124, 1140-41.) Bifurcation would support judicial economy whether Defendant or Plaintiffs prevail on the issue of cause-in-fact. Should Defendant prevail, the remaining claims may be subject to dismissal. If Plaintiffs prevail, the focus shifts to the other elements of their claims. (Bookout v. State of Cal. ex rel. Dept. of Transportation (2010) 186 Cal.App.4th 1478, 1488 [“[I]f the defendant did not cause harm, there is no causation no matter what the cause of action”].) The Court declines to consider the merits of the causation issue here. Defendant’s motion is therefore granted.

The issue of causation for the inverse condemnation cause of action is bifurcated.

Defendant to give notice.

[1]

Plaintiffs also claim the motion is procedurally improper because the notice of motion does not cite the authority it is based upon. This challenge is without merit as the notice of motion clearly states that Defendant is moving for bifurcation of the issue of causation for the inverse condemnation claim. The points and authorities also specifies the legal authorities relied upon. (See Luxury Asset Lending, LLC v. Philadelphia Television Network, Inc. (2020) 56 Cal.App.5th 894, 909 [“An omission in the notice may be overlooked if the supporting papers make clear the grounds for the relief sought”].)